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|     |                                                                           | <p>directed that payment be remitted to PTAG by wire or ACH pursuant to the instructions stated on the invoices. Payment was therefore to be made to PTAG in Orange County.” (Id. ¶10.)</p> <p>However, in the reply, Defendant submits evidence Mariana Rossano, (Defendant’s General Partner) that:</p> <p>“4. On or about May 23, 2022, I executed the Agreement on behalf of ZENLP by DocuSign, signing in the capacity of “CEO” of Zero Effort Nutrition. I executed the Agreement from ZENLP’s Sun Valley, Los Angeles County offices. I have never conducted business on behalf of ZENLP from any location in Orange County, and I did not do so in connection with the execution of the Agreement.</p> <p>“5. ZENLP’s operating bank accounts, financial records, and bookkeeping are maintained exclusively in Los Angeles County. All authorizations for ZENLP’s disbursements—including any payment that would have been due under the Agreement—are made from ZENLP’s Sun Valley offices. No ZENLP account, record, or disbursement authority is, or has ever been, located or exercised in Orange County.”</p> <p>Per the prior declaration of Ms. Kiely, Ms. Rossano signed after her. Therefore, it appears Ms. Rossano was the last act. “The last act necessary to the validity of a contract, usually the act constituting acceptance, is the place of its making.” [<i>Jhirmack Enterprises, Inc. v. Superior Court</i> (1979) 96 Cal.App.3d 715, 723.]</p> <p>Also, it would appear that the breach occurred in LA as well because this case is about Defendant’s alleged failure to pay, and Ms. Rossano declares, “All authorizations for ZENLP’s disbursements— including any payment that would have been due under the Agreement—are made from ZENLP’s Sun Valley offices”.</p> <p>As such, venue is proper in LA because Defendant is a resident of LA, the contract was entered into in LA, and breached in LA.</p> <p>Therefore, the Motion for Change of Venue is GRANTED.</p> <p><i>Defendant to give notice.</i></p> |
| 105 | Am-Kore Fire Protection Co. Inc. vs. Phoebe Investments, LLC, 24-01398810 | <p>Plaintiff Am Kor Fire Protection Co., Inc. (“Am-Kor”) moves the Court for an order consolidating the following actions pursuant to Cal. Civ. Proc. Code § 1048(a):</p> <ul style="list-style-type: none"> <li>- Am-Kor Fire Protection Co., Inc. v. Phoebe Investments, LLC, et al., Orange County Superior Court Case No. 30-2024-01398810-CU-BC-WJC (the</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|  |  | <p>"Breach of Lease Action")</p> <ul style="list-style-type: none"> <li>- Am-Kor Fire Protection Co., Inc. v. Phoebe Investments, LLC, et al., Los Angeles County Superior Court Case No. 24PSCV03747 (the "Fraudulent Conveyance Action")</li> </ul> <p>Initially, when actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (CCP §1048(a).)</p> <p>A complete consolidation may be ordered where the parties are identical and the causes of action could have been joined. The pleadings are regarded as merged, one set of findings is made, and one judgment is rendered. Because the actions are effectively merged, parties who appeared in either action are subject to the court's jurisdiction in the merged action. [See <i>Hamilton v. Asbestos Corp., Ltd.</i> (2000) 22 Cal.4th 1127, 1147-1148.]</p> <p>Consolidation is limited to cases pending in the same court. Where cases having "common questions" are pending in different courts, as here, either court may order "noncomplex" cases transferred to and consolidated with cases pending before the court; "complex" cases must be "coordinated" with each other. [CCP §§ 403, 404.]</p> <p>To that end, Code Civ. Proc., § 403 provides:</p> <p>"A judge may, on motion, transfer an action or actions from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. The motion shall be supported by a declaration stating facts showing that the actions meet the standards specified in Section 404.1, are not complex as defined by the Judicial Council and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action. Notice of the motion shall be served on all parties to each action and on each court in which an action is pending. Any party to that action may file papers opposing the motion within the time permitted by rule of the Judicial Council. The court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing."</p> <p>Here, the motion was served on Wendy Hong Trinh, Billy Ha, and PLC Home Design, LLC.</p> |
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However, notice of motion was not served on Defendant PHOEBECAT INVESTMENTS, LLC or Bill Tran. Moreover, there is no indication notice of the motion was served in the LASC case as required by CCP §403.

Therefore, the Motion is DENIED without prejudice.

Even if there were proper notice, the motion would likely be denied. The parties are not identical, nor do they involve common questions of law.

Plaintiff initiated this action on 5/10/2024 against Defendants 1) PHOEBECAT INVESTMENTS LLC, 2) WENDY HONG TRINH, and 3) BILLY N. HA for Breach of Lease et al. (ROA 2)

Thereafter, on 11/1/2024 Plaintiff initiated another action in LASC against 1) PHOEBECAT INVESTMENTS LLC, 2) WENDY HONG TRINH, 3) BILLY N. HA, 4) BILL TRAN, 5) PLC HOME DESIGN LLC for Violation of Uniform Voidable Transactions Act. In the LASC lawsuit, Plaintiff pleads:

"33. Days after being threatened with the filing of the Action in March of 2024, on or about April 2, 2024, Trinh fraudulently transferred the Property to her and Ha's son Tran via a Grant Deed ("Trinh to Tran Transfer") recorded with the Los Angeles County Recorder's Office on April 2, 2024 as Document Number 20240212127. Attached hereto as Exhibit A is a true and correct copy of the Trinh to Tran Transfer Grant Deed."

[Decl. of Hifai¶10, Ex. C. .]

Notably, the LASC action has two more defendants named: Bill Tran and PLC Home Design LLC.

Additionally, there are no common questions of law as to breach of lease and fraudulent conveyance. Rather, the Fraudulent Conveyance allegedly occurred after threat of the Breach of Lease lawsuit.

Although some of the parties are the same, (and one lawsuit arose from the threat of another) there is no need to transfer or consolidate these matters. There is no evidence that transfer, coordination, and consolidation will result in the avoidance of unnecessary costs or delay.

Notably, Plaintiff chose to file two separate cases in two separate counties. This case has been pending for over two years and is set for trial on 2/8/2027. There is no indication as to the status of the LASC case, but it is likely consolidating the cases could result in the further delay of this matter.

*Plaintiff to give notice.*

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| 106 | Home Mortgage Alliance Corporation (HMAC) vs. Turturro, 24-01402022 | <p><u>Defendants' Motion for Judgment on the Pleadings</u><br/> Defendants, Michael Turturro ("Turturro"); OCMBC, Inc. ("OCMBC"); and Jet Alliance (collectively, "Defendants"), seek judgment in Defendants' favor and dismissal with prejudice of the third through seventh, ninth, and twelfth through fifteenth causes of action of Plaintiff, Home Mortgage Alliance Corporation's Second Amended Complaint ("SAC").</p> <p>Defendants contend that the third through seventh, ninth, and twelfth through fifteenth causes of action asserted by Plaintiff, Home Mortgage Alliance Corporation ("HMAC"), in the SAC, are preempted by the California Uniform Trade Secrets Act ("CUTSA"), as they are based on the same nucleus of facts as the cause of action for misappropriation of trade secrets, and thus, should be dismissed with prejudice. Defendants separately contend that they are entitled to judgment on Plaintiff's fourth and fifth causes of action for Tortious Interference with Contract and Tortious Interference with Prospective Economic Advantage, respectively, because Plaintiff fails to identify any specific third-party contract or specific prospective economic relationship as required by law. They additionally contend that OCMBC is entitled to judgment on Plaintiff's sixth cause of action for breach of fiduciary duty cause of action because there are no allegations that OCMBC owed Plaintiff any fiduciary duties, and that Defendants are entitled to judgment on Plaintiff's ninth cause of action for Accounting because it is not standalone cause of action in California. Finally, Defendants contend that leave to amend should be denied because Plaintiffs cannot separate the alleged scheme pled throughout the operative SAC and all prior pleadings without violating the rule against pleading inconsistent facts.</p> <p>HMAC contends that CUTSA preempts only those noncontract claims that seek recovery for the same legal wrong as trade secret misappropriation, and that each cause of action at issue rests on an independent legal duty or materially different wrongful conduct, such that the causes of action at issue are not preempted by CUTSA. HMAC asserts that none of the claims at issue depend for liability on confidential information, that the controlling inquiry is the gravamen or gist of each individual claim—not a tally of the complaint's references to "confidential" information, and that HMAC is entitled to plead alternative theories of liability. HMAC also asserts that the fourth cause of action is sufficiently pled as the SAC identifies the category of contracts at issue (the Broker Agreements), and that the fifth cause of action is sufficiently pled as the independently wrongful element is satisfied by the trademark and fraud allegations regardless of CUTSA. HMAC further asserts that the ninth cause of action for Accounting is an equitable remedy ancillary to independent claims, and that because HMAC's fiduciary duty, interference, trademark, passing-off, contract, and statutory</p> |
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